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City Clerk's Office
City of Santa Clara

County of Santa Clara Registrar of Voters

BALLOT MEASURE PRIMARY ARGUMENT FORM

This **Ballot Measure Primary Argument Form** must be submitted **for all ballot measure PRIMARY ARGUMENTS**, with required signatures and author information. The County of Santa Clara Office of the Registrar of Voters allows electronic submission of documents if the scanned copy is clear and readable. You may email your completed form and attach the primary argument in Microsoft Word version to candidateservices@rov.sccgov.org. Any errors submitted on the form or primary argument will be printed in the County Voter Information Guide and/or ballot exactly as submitted. A proof will be sent to the primary filer for confirmation that it matches the argument as submitted—no other corrections will be accepted.

Assembly Bill 1416 was signed by the Governor and is effective as of January 1, 2023. This legislation (Elections Code section 9170) allows primary argument signers to provide a list of individuals, associations, nonprofit organizations, or businesses that are signers or are listed within the text of the argument who support or oppose a ballot measure to be listed under the ballot label. If you wish to submit a list of supporters or opponents, please complete Section 4 on page 5 of this form by providing a list of names of the individuals, associations, nonprofit organizations, and/or businesses to be listed as supporters or opponents. A sample ballot label is provided on page 9, Section 6: Appendix C.

Office Use Only

FILED
JULY 28
~~MAR 17~~ 2026
4:08PM
REGISTRAR OF VOTERS
COU[redacted] CLARA
By [redacted] Deputy

Time/Date Stamp

Date of Election: November 3, 2026 General Election
Jurisdiction: City of Santa Clara

Primary Argument due date (E-84): July 28, 2026
Examination Period (E-83 to E-74): July 29, 2026 to August 7, 2026

Rebuttal Argument due date (E-77): August 7, 2026
Examination Period (E-76 to E-67): August 8, 2026 to August 18, 2026

Measure Letter C (if available – letters will be assigned after 5:00 p.m. on E-88)

Type Arg you

☑ Primary Argument in Favor / Proponent	☐ Primary Argument Against / Opponent

Declaration Related to Proponent/Opponent Primary Arguments
(Elections Code §§ 9161, 9164, 9167, 9170, 9501, 9501.5, 9504, 9600)

App

☑ **I am an Author of the Proponent Primary Argument** (noted above) for **Measure** C being submitted. I support this measure.

☐ **I am an Author of the Opponent Primary Argument** (noted above) for **Measure** _____ being submitted. I oppose this measure.

start There are many ways to contract for public construction projects, but the outdated City of Santa Clara Charter limits us to only one: Design-Bid-Build (DBB). Under DBB, a project must be fully designed before it is bid out to contractors. A fixed-price contract is awarded to the lowest responsible bidder. While this process works well for many smaller projects, it often delays complex projects because every detail must be designed before construction can begin. Contractors usually price unknown risks into their bids or decide not to bid at all. The result can be fewer bidders, higher costs, and unnecessary delays.

96

Measure _____ allows the City of Santa Clara to use additional proven contracting methods alongside DBB that can help deliver projects faster and more efficiently while protecting taxpayers. The most common alternative is Design-Build (DB), whereby one qualified team designs and constructs the project. Contracts are awarded based on experience, expertise, and proven performance. Construction can begin before every design detail is finalized, reducing delays. Costs remain transparent through City oversight, and project risks are shared between the contractor and the City. **DB is already permitted for all California General Law cities and many Charter cities like San Jose.**

92

The City is preparing to deliver more than $400 million in critical infrastructure improvements, many of them large and technically complex. Smaller, simpler projects would continue to use the traditional DBB process. Measure ____ simply gives Santa Clara the flexibility to choose the contracting method best suited to each project.

48

In 2009, former City Manager, Don Von Raesfeld, led a Charter committee that recommended design-build be put to the voters.

17

City Council voted 7:0 to put this measure on the ballot.

10

Vote YES to help Santa Clara complete major projects such as the ISC rebuild, more efficiently, more competitively, and with greater flexibility.

24 end

284

CITY OF SANTA CLARA
CITY CLERK'S OFFICE
2026 JUL 28 PM 2:36

[redacted] ONLY

[redacted]

FILER / SIGNER SECTION

The Filer of a Primary Argument is the person or entity that is responsible for filing an argument for or against (or in rebuttal to an argument for or against) a measure. The Signer of the Primary Argument is a person whose name is listed and published in the County Voter Information Guide in the election materials after the argument as one of the signatories. Generally, a Filer or Signer may be a district or member(s) of the governing board of that district, an individual voter who is eligible to vote on the measure, a bona fide association of citizens, or a combination of such voters and associations. The Filer signs the argument submission form, attesting under penalty of perjury that they meet the requirements to file an argument. The Filer is typically the main proponent or opponent of the measure but does not have to be. A Filer can also be a Signer of the argument. State law allows for up to five signers for any argument. Therefore, five people may be both Filers and Signers. However, Filers are not required to be Signers.

NOTE: Personal contact information including street address, phone and email will be redacted prior to posting online. Do not include personal contact information when using business information as it is not redacted prior to posting online.

FILL OUT BOTH FILER AND SIGNER SECTIONS IF YOU ARE A FILER AND A SIGNER OF THE PRIMARY ARGUMENT

*** Required information.**

I am the **FILER** of the primary argument: ☑ Yes / ☐ No

I am also a **SIGNER** of the primary argument: ☑ Yes / ☐ No

AS A FILER: My contact information for receiving the opposing author's primary argument is:

*** My Name is:** Sudhanshu "Suds" Jain

INDICATE IF ADDRESS IS: ☑ **Residential or Residential Mailing;** ☐ **Business or Business Mailing**

* Address: [redacted] Santa Clara CA 95050

* Email Address: [redacted] Phone Number (cell/direct): [redacted]

DO NOT FILL OUT BELOW SIGNER SECTION IF YOU ARE A FILER ONLY OF THE PRIMARY ARGUMENT

AS A SIGNER: I am a: ☐ Registered Voter in the District ☑ Governing Board Member ☐ ***** Principal Officer of an Organization

*** I have attached one of the following items listed on Page 2 to this form.**

*** My GENDER is:**

☑ Masculine ☐ Feminine ☐ Androgynous or Non-binary ☐ Other:

*** My SIGNING ORDER** on the Argument text to be published is: ☐ **1** / ☑ **2** / ☐ **3** / ☐ **4** / ☐ **5** *(please check one)*

*** My name as a SIGNER** (signature to be printed with the primary argument) is: Sudhanshu "Suds" Jain
(do not include degrees or titles; print or type signature in upper- and lower-case font)

*** TITLE OF SIGNER** (to be printed with the primary argument) is: Santa Clara Councilmember
(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE ➡	Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an organization or bona fide association of citizens for purposes of submitting an argument:
	[redacted]
	ROV ONLY ACCEPTS WET OR DOCUSIGNED SIGNATURES (signatures will be redacted prior to posting online)